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LINE 16

25-CIV-09351

ALEXANDER ROWLAND, ET AL. VS. ACE FUNDING SOURCE LLC

ALEXANDER ROWLAND
ACE FUNDING SOURCE LLC

STEVEN J. MIRSKY
BARUCH C. COHEN

DEFENDANT'S MOTION TO ENFORCE MANDATORY FORUM SELECTION CLAUSE AND DISMISS OR STAY FOR
FORUM NON CONVENIENS

TENTATIVE RULING:

Defendant Ace Funding Source, LLC's ("Defendant") Renewed Motion to Enforce Mandatory Forum Selection Clause and Dismiss or Stay for Forum Non Conveniens is DENIED. The court finds that the forum selection clause contained in the Sale of Future Receipts Agreement between Plaintiff LernaLabs, Inc. ("LLI") and Defendant ("agreement") is not mandatory because it does not provide for exclusive jurisdiction in the New York courts.

Forum non conveniens is an equitable doctrine involving the discretionary power of a court to decline to exercise jurisdiction when it believes the action is more appropriately and justly tried elsewhere. (*Stangvik v. Shiley, Inc.* (1991) 54 Cal.3d 744, 751 (*Stangvik*)). A mandatory forum selection clause in an agreement is ordinarily given effect without any analysis of convenience, and the only question is whether enforcement of the clause would be unreasonable. (*Animal Film, LLC v. D.E.J. Productions, Inc.* (2011) 193 Cal.App.4th 466, 471.) If the clause merely provides for submission to jurisdiction and does not expressly mandate litigation exclusive in a particular forum, then the traditional forum non conveniens analysis applies. (*Ibid.*)

Defendant relies on *Korman v. Princess Cruise Lines, Ltd.* (2019) 32 Cal.App.5th 206, to argue that the forum selection clause is mandatory. The forum selection clause in the agreement in *Korman* stated that "All claims or disputes involving Emotional Harm, bodily injury, illness to or death of any Guest whatsoever, including without limitation those arising out of or relating to this Passage Contract or Your Cruise, shall be litigated before the United States District Courts for the Central District of California in Los Angeles, or as to those lawsuits over which the Federal Courts of the United States lack subject matter jurisdiction, before a court located in Los Angeles County, California, U.S.A., to the exclusion of the courts of any other country, state, city, municipality, county or locale." (*Id.*, at p. 210.)

In contrast, paragraph 20 of the agreement states:

Binding Effect, Governing Law, Venue and Jurisdiction. This Agreement shall be binding upon and inure to the benefit of Seller, Buyer, Guarantor and their respective successors and assigns, except that neither Seller nor Guarantor shall have the right to assign its respective rights hereunder or any interest herein without the prior written consent of Buyer which consent may be withheld in Buyer's sole discretion. Except as set

forth in the Arbitration section, this Agreement shall be governed by and construed in accordance with the laws of the state of New York, without regard to any applicable principles of conflicts of law.

Each Seller and Guarantor understands and agrees that (i) Buyer is located in New York, (ii) Buyer makes all decisions from Buyer's office in New York, (iii) the Agreement is made in New York (that is, no binding contract will be formed until Buyer receives and accepts Seller's signed Agreement in New York, and (iv) Seller's payments are not accepted until received by Buyer in New York. ***Any suit, action or proceeding arising hereunder, or the interpretation, performance or breach of this Agreement, shall, if Buyer so elects, be instituted in any court sitting in New York, (the "Acceptable Forums").*** Each Seller and Guarantor agrees that the Acceptable Forums are convenient to it, and submit to the jurisdiction of the Acceptable Forums and waives any and all objections to jurisdiction or venue. Should such proceeding be initiated in any other forum, each Seller and Guarantor waives any right to oppose any motion or application made by Buyer to transfer such proceeding to an Acceptable Forum. Unless prohibited by law, Buyer, Seller and Guarantor further agree that the mailing by certified or registered mail, return receipt requested, of any process required by any such court will constitute valid and lawful service of process against them, without the necessity for service by any other means provided by statute or rule of court, but without invalidating service performed in accordance with such other provisions.

(Complaint, Exh. B, Agreement, ¶ 20 (emphasis added).)

Contrary to Defendant's argument, the forum selection does not mandate exclusive jurisdiction in a New York court. Although the forum selection clause uses the word "shall" in referring to instituting an action in New York courts, it is qualified by the phrase "if Buyer so elects." Defendant's CEO acknowledges that under the agreement, the action may be brought in New York if Defendant so elects. (Guttman Decl., ¶ 4.) As CEO, he has authority to elect New York as the exclusive forum. (*Id.*, ¶ 5.) Defendant's own evidence supports that the action may only be brought in a New York court if Defendant elected. The implication is that the action could have been brought elsewhere if Defendant did not elect to bring it in a New York court. The language in the agreement does not limit where the Seller, in this case Plaintiff, may bring suit. As such, the parties did not agree that jurisdiction is exclusive to New York courts. Thus, the court finds the forum selection clause is not mandatory.

As such, the traditional forum non conveniens analysis applies instead. (*Animal Film, LLC, supra*, 193 Cal.App.4th at p. 471.) Under the traditional forum non conveniens analysis, the defendant bears the burden of proof. (*Stangvik, supra*, 54 Cal.3d at p. 751.) The defendant must provide the trial court with evidence sufficient to carry out its weighing and balancing analysis. (*National Football League v. Fireman's Fund Ins. Co.* (2013) 216 Cal.App.4th 902, 933, fn. 15.) The court first determines whether the alternate forum is a suitable place for trial. (*Stangvik, supra*, 54 Cal.3d at p. 751.) If the court finds a suitable alternate forum, then the court next considers the private interests of the litigants and the public interests in retaining the action for trial in California. (*Ibid.*) "The private interest factors are those that make trial and the enforceability of the ensuing judgment expeditious and relatively inexpensive, such as the ease of

access to sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses.” (*Ibid.*) The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. (*Ibid.*) Defendant fails to provide any analysis or evidence addressing this traditional forum non conveniens analysis, and therefore it has not met its burden.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 17

26-UDL-00484

DICKENS LIU, ET AL. VS. MAUNG SOE NAING, ET AL.

DICKENS LIU
MAUNG SOE NAING

ILENE M HOCHSTEIN
PRO SE

MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiffs Dickens Liu's and Elizabeth Liu's motion for summary judgment against Defendants Maung Soe Naing, Khin Ma Ma and Does pursuant to Code of Civil Procedure sections 1170.7 28 and 437c is DENIED.

Parties' requests for judicial notice are GRANTED. (Evid. Code §§ 452, 453.)

A. Background

This is an unlawful detainer action for possession of the subject property 3268 San Jose Avenue in Daly City. Plaintiffs were the high bidders at a trustee's sale of the subject property on November 19, 2025 (Liu Decl. ¶ 7.) The plaintiffs recorded their deed on December 12, 2025. (Liu Decl. ¶ 8, Ex. 6.) On April 14, 2026, plaintiff served defendant with a 3-day notice to quit but defendants refused to leave and remain in possession. (Liu Decl. ¶¶ 11-15.)

The Court notes this is the second motion for summary judgment in the underlying action. The Court denied plaintiff's earlier motion for summary judgment on the merits on July 14, 2026. (See Defendants' Request for Judicial Notice and Defendant's Exhibits, Ex. A.)

B. Legal Standard

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c, subd. (c).) The movant bears the initial burden to show there is no triable issue of material fact as to the claim and that they are entitled to judgment on the claim as a matter of law. (*Ibid.*)

Under Code of Civil Procedure section 437c, **a party shall not bring more than one motion for summary judgment against an adverse party to an action absent leave of court upon motion and a showing of good cause.** (Code Civ. Proc. § 437c, subd.(a)(4)&(5), emphasis added.) Additionally, "Code of Civil Procedure section 437c, subdivision (f)(2) states that a party may not move for summary judgment based on issues asserted in a prior motion for summary adjudication unless it " 'involves newly discovered facts or circumstances or a change of law.' "

[Citations.].” (*Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827, *as modified on denial of reh'g* (Oct. 22, 2007).)

C. Discussion

Here, the Court finds this is plaintiffs’ second motion for summary judgment in this action against defendants without requesting leave of the Court to do so. Furthermore, even if a request had been made to file a second motion, such motion would have been denied because it is made upon the same basis, facts and circumstances as the motion which this Court denied in its July 14, 2026 ruling. Nor was there a change of law in the three days which elapsed between the Court’s ruling and the instant motion’s filing date of July 17, 2026.

Moreover, even if plaintiff had sought- and the Court had granted- leave to bring this second motion for summary judgment, the motion would be denied on the basis of evidence presented by defendants. If movant establishes “ ‘a prima facie showing that justifies a [ruling] in the [plaintiffs] favor, the burden then shifts to the [defendant] to make a prima facie showing of the existence of a triable material factual issue.’ ” (*Rehmani v. Superior Court* (2012) 204 Cal.App.4th 945, 950.) A triable issue of material fact exists “if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. [footnote and citation omitted].” (*Santillan v. Roman Catholic Bishop of Fresno* (2008) 163 Cal.App.4th 4, 9.) Upon review of the defendants’ exhibits and moving papers in support, because the Court finds defendants have raised a question of fact regarding permission to remain on the premises. (See Defendant’s Ex. C.) For all these reasons, plaintiffs’ second unauthorized motion for summary judgment is DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, defendants shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.
